

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2176
(Senators Axtman, Hogan)
(Representatives O'Brien, Pyle)

AN ACT to create and enact a new section to chapter 54-07 of the North Dakota Century Code, relating to the children's cabinet and designated working groups; to repeal section 50-06-43.1 of the North Dakota Century Code, relating to the children's cabinet; and to provide for a legislative management report.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. A new section to chapter 54-07 of the North Dakota Century Code is created and enacted as follows:

Children's cabinet - Membership - Duties - Working groups - Report.

1. The children's cabinet is created to assess, guide, and coordinate the care for children and families across the state's branches of government and the tribal nations.
2. The children's cabinet is composed of:
 - a. The governor, or the governor's designee;
 - b. The chief justice of the supreme court, or the chief justice's designee;
 - c. Two members of the house of representatives, appointed by the majority leader of the house of representatives to serve two-year terms;
 - d. Two members of the senate, appointed by the majority leader of the senate to serve two-year terms;
 - e. The superintendent of public instruction, or the superintendent's designee;
 - f. The director of the committee on protection and advocacy, or the director's designee;
 - g. The commissioner of the department of health and human services, or the commissioner's designee;
 - h. A representative of the tribal nations in the state, who is appointed by the governor; and
 - i. Five individuals, appointed by the governor to serve a term of two years at the pleasure of the governor, consisting of:
 - (1) A local school representative;
 - (2) A local special education representative;
 - (3) A human service zone director;
 - (4) A representative of a private agency that provides direct services to vulnerable children; and
 - (5) A parent.
3. The governor, in collaboration with the chairman of the legislative management, shall appoint as the presiding officer of the children's cabinet a member of the governor's cabinet or a

legislator serving on the children's cabinet. The children's cabinet shall select one of its members to serve as the vice-presiding officer.

4. The children's cabinet shall meet at least quarterly. Additional meetings may be held at the discretion of the presiding officer.
5. The children's cabinet shall:
 - a. Coordinate broad-based leadership across programs, agencies, branches of government, and tribal nations to meet the needs of children and families;
 - b. Develop strategies to address gaps or needs regarding early care and education, medical and behavioral health, community, child welfare, and juvenile justice;
 - c. Develop strategies to provide for the full continuum of care in the delivery of services, including promotion, prevention, early identification and intervention, service delivery, and recovery;
 - d. Seek to engage cooperation across public and private service providers;
 - e. Provide a comprehensive vision for how and where children are best served, attending to children and families in a respectful and relevant manner;
 - f. Seek strategies to provide services to children without consideration of prior engagement with juvenile services;
 - g. Provide for the active participation of consumers and providers statewide on advisory committees;
 - h. Receive information and recommendations from the department of health and human services, department of corrections and rehabilitation, and other state agencies;
 - i. Establish and oversee designated working groups to develop policies impacting children and families; and
 - j. Provide an annual report to the legislative management and governor regarding the activities and findings of:
 - (1) The children's cabinet; and
 - (2) Other designated working groups on children and family issues.
6. The office of the governor shall provide staffing and administrative services for the children's cabinet and coordinate with other designated working groups on children and family issues.
7.
 - a. The presiding officer of the children's cabinet may designate working groups and appoint or remove liaisons to serve on the working groups.
 - b. A member of the children's cabinet or working group who is not a state employee is entitled to reimbursement for mileage and expenses as provided by law for state officers and employees, to be paid by the office of the governor.
 - c. A state employee who is a member of the children's cabinet or working group is entitled to receive that employee's regular salary and is entitled to reimbursement for mileage and expenses to be paid by the employing agency.
 - d. A member of the children's cabinet or working group who is a member of the legislative assembly is entitled to receive per diem compensation at the rate provided under section 54-35-10 for each day performing official duties of the children's cabinet or working group. The legislative council shall pay the per diem compensation and reimbursement

for travel and such expenses as provided by law for any member of the children's cabinet or working group who is a member of the legislative assembly.

SECTION 2. REPEAL. Section 50-06-43.1 of the North Dakota Century Code is repealed.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2176.

Senate Vote: Yeas 47 Nays 0 Absent 0

House Vote: Yeas 75 Nays 9 Absent 10

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State